

INTELLECTUAL PROPERTY / THE GENERATIVE ECONOMY

The Programmable Brand

For two years the story about generative AI and creativity was a story about replacement. The deals being signed in 2026 tell a different one – about licensing, and about who gets to own the rails.

ANALYSIS ~6,200 WORDS SOURCES VERIFIED TO 04 JUNE 2026

On the third of June, 2026, Hasbro did something that would have been unthinkable to a media lawyer five years ago: it invited the world to put words in Optimus Prime's mouth. Not Hasbro's words – *yours*. Through a new in-house studio called Sixth Wall, the company began licensing not the appearance of its characters but their *behaviour* – how Megatron argues, how Cobra Commander menaces, how the cast of Clue insinuates – for deployment inside chatbots, games, toys and brand experiences built by third parties.¹ It is the first time a major rights holder has formally treated a character's personality as a programmable, rentable asset. And it is the clearest signal yet that the entertainment industry has quietly abandoned the war it spent 2023 and 2024 fighting.

That war had a simple plot. Generative AI was a thief; the studios were the police; the courts were the battleground. The dominant frame – in the press, in the lawsuits, in the anxious op-eds – was **substitution**. Machines would replace illustrators, voice actors, session musicians, screenwriters. The only question was the body count.

This framing was not wrong so much as it was looking at the wrong table. The substitution story is about cost-cutting inside large producers. The far larger economic event is happening somewhere else entirely: in the **creator economy** – the loose, sprawling, semi-professional mass of independent makers, micro-brands and fan communities that has grown into something on the order of a quarter-trillion-dollar market.² The real generative opportunity is not replacing the people who make culture. It is licensing the raw material of culture to the tens of millions of people who already want to remix it – and finally being able to get paid when they do.

This piece is about how that shift became possible, why it failed for two decades before it suddenly worked, and what the deals of 2026 – Hasbro, Spotify–Universal, the spectacular collapse of Disney–OpenAI – reveal about where value, power and labour are actually migrating. The short version: the brands that win will be the ones that stop treating their IP as a vault to be guarded and start treating it as an *environment* to be governed.

The interesting question was never whether the machine can make the thing. It is who controls the conditions under which a million strangers make the thing for you.

01 – The Misread Story

From substitution to participation

Begin with the audience, because the audience is where the demand actually lives. The defining behavioural fact of the last fifteen years of digital culture is that people stopped wanting to merely *consume* media. They wanted to handle it – to remix the song, to write the fan fiction, to make the meme, to put the character in a situation its creators never sanctioned. Henry Jenkins gave this its name two decades ago: **participatory culture**, a media environment with low barriers to creation and a strong social incentive to share what you make.³ Generative tools did not invent that impulse. They industrialised it. They handed the participatory instinct a factory.

For rights holders, this presented a genuine dilemma rather than a simple threat. Every unauthorised remix is, simultaneously, a copyright violation *and* a piece of free marketing – evidence of exactly the emotional attachment that makes an IP valuable in the first place. The legacy response was to treat the violation as load-bearing and the affection as incidental: cease-and-desist, takedown, lawsuit. Disney, tellingly, sent Google a cease-and-desist over alleged unauthorised training on its catalogue *before* it ever sat down to negotiate with OpenAI.⁴ Enforcement was the reflex.

The pivot now underway is from that reflex to its inverse. Instead of asking *how do we stop people using our characters*, the progressive rights holder asks *how do we build the meter that runs while they do*. Hasbro's CEO Chris Cocks framed Sixth Wall precisely as a "third way" between endless, costly enforcement and passive brand dilution.¹ The shift is institutional, not merely tactical: it requires reconceiving the IP itself, from a finished product shown to consumers into a set of permissions, guardrails and APIs offered to co-creators.

02 – The Economics

Why it failed for twenty years, and what changed

The most useful lens for understanding the failure – and the sudden success – is the oldest one in the theory of the firm. In 1937 Ronald Coase asked why firms exist at all, and answered: because using the market is not free.⁵ Every transaction carries hidden costs – of *searching* for a counterparty, *negotiating* terms, *monitoring* performance, *enforcing* the bargain. Oliver Williamson built this into a full account of why some exchanges happen inside organisations and others across markets.⁵ When the friction of transacting exceeds the value at stake, the transaction simply doesn't happen.

This is exactly the trap that licensed fan creation fell into. Imagine a bedroom producer who wants to legally build a track around a Universal master, or a tiny studio that wants to put an authorised Transformers

character in a mobile game. The economics are hopeless. The cost of finding the rights holder, reaching the right desk, negotiating a bespoke contract and policing the output dwarfs any plausible revenue from a niche creation. So the market failed in the textbook way: either the work never got made, or it got made illegally. Billions of derivative works took the second path, into a grey zone of copyright strikes and lost revenue on both sides.

The standard telling – including in the research this piece builds on – is that generative platforms "compress transaction costs to near zero" and the market simply clears. That is half right, and the wrong half is the interesting one.

LOAD-BEARING CLAIM, SOFTENED

AI does not abolish transaction costs. It relocates them. Embedding licensing into a generative workflow genuinely collapses the cost of *search* (the catalogue is right there in the app) and *negotiation* (terms are programmatic, accepted with a click). But it *raises* the cost of *monitoring* and *enforcement* – because you have now authorised creation at a scale no human legal team could ever police by hand.

The new costs migrate into infrastructure: provenance tracking, identity verification, behavioural guardrails, royalty attribution. The deals of 2026 are best read not as "transaction costs went to zero" but as "the industry finally figured out where to put the meter and the fence."

Seen this way, the headline innovations of 2026 are not the generative models at all. They are the *governance layers*. Hasbro's CharacterOS – the system that enforces a character's canon, voice and safety bounds in real time – is a monitoring-and-enforcement technology dressed as a creative one.¹ Spotify's "Verified by Spotify" badge and its opt-in catalogue are enforcement-by-architecture.⁶ The programmatic metadata linking every remix to its source is monitoring at machine scale. The value the platforms add is not generation. Generation is a commodity. The value is the *fence*.

The second theoretical leg is the **resource-based view** of strategy: firms win durably by combining resources that are valuable, rare, hard to imitate and hard to substitute.⁷ The creator economy's scarce resources are split awkwardly between two parties. Legacy holders own the rare, emotionally resonant assets – the iconic voice, the beloved character, the master recording. Independent creators own the things the legacy holders are worst at: relational trust with a specific audience, native fluency in platform formats, and speed. Neither can fully exploit the AI moment alone. The structured licence is the contract that lets them combine – the studio brings Megatron, the developer brings the audience and the app.

Five models, one question

To compare the emerging models without drowning in press-release language, it helps to hold each one against a single test. The Spotify–Universal deal supplied the cleanest articulation of it – a framework built on three pillars: **consent**, **credit**, **compensation**.⁶ I'll use those three Cs as a constant lens. A model is robust to the degree it delivers all three; the failure modes are visible in which C gets dropped.

HASBRO & ELEVENLABS – BEHAVIORAL LICENSING

CONSENT · TALENT

CREDIT

COMPENSATION

Sixth Wall's genuinely new idea is in the noun. Traditional licensing governs *where* a character appears – on a lunchbox, in a film, on a T-shirt. Behavioral Licensing governs *how it behaves*: how it thinks, speaks and reacts inside a live, unscripted interaction.¹ That is a category that simply did not need to exist until characters could improvise. The enabling technology, CharacterOS, encodes each character's personality, canonical lore, vocal timbre and safety limits, and enforces them at runtime – so a licensed Cobra Commander stays menacing and on-brand without a writer in the loop.

The studio's origins are revealing. The project grew out of an internal experiment: an interactive digital Ouija board that, by the launch team's account, logged hundreds of thousands of player interactions within its first few days – proof that fans would engage deeply, safely and at volume with a generative character if the experience felt authentic.¹ CEO Roberta Thomson describes the design intent as preserving personality, "not just the voice."⁸

On the three Cs, this is the most complete model of the five. Voices are built from authorised recordings and real human performances; a **talent participation** structure compensates the original performers for the generative use of their work.¹ That matters enormously, and it is also where the sharpest critique lives. "Participation" is a compensation mechanism – it answers *credit* and *compensation*. It does not, by itself, settle *consent* in the deeper sense the actors' unions mean: ongoing control over how a performance is used, and the right to refuse. A pay cheque is not a veto. The model's legitimacy will rest on terms the press releases don't disclose.

One more thing the timing tells us. Sixth Wall launched into a regulatory climate where the U.S. Federal Trade Commission has opened inquiries into AI companions and their effects on minors, and the studio pointedly restricts its initial focus to users 13 and over and enterprise use, explicitly not building for young children.⁹ The guardrail is not only a brand-safety feature. It is a liability shield.

SPOTIFY & UNIVERSAL MUSIC GROUP – PLATFORM-EMBEDDED REMIXING

CONSENT · OPT-IN

CREDIT

COMPENSATION

On 21 May 2026, at Spotify's Investor Day, Spotify and Universal announced linked recorded-music and publishing agreements to let fans create AI covers and remixes of participating artists' songs – a tool to ship as a paid add-on for Premium subscribers, with revenue flowing back to the artists and songwriters whose work is reinterpreted.⁶ The market read it as a direct shot at Suno; Spotify's stock jumped on the day.¹⁰

The structure maps onto the three Cs almost too neatly, because UMG wrote the slogan. **Consent** is opt-in: only the catalogues of artists who actively agree are available for remixing. **Credit** is programmatic: derivatives are linked to original metadata. **Compensation** is a new royalty stream layered on top of standard streaming.⁶

What makes this deal more interesting than its slogan is its prehistory. UMG spent 2024 calling Suno and Udio's training "infringement on an almost unimaginable scale."¹¹ Then, in October 2025, it *settled* with Udio and agreed to build a licensed product instead.¹² The Spotify deal is the mature form of that turn: litigation converted into a revenue line. The lesson generalises – the lawsuits were never the destination. They were leverage to force a licensing table into existence.

THE TENSION THIS MODEL CAN'T FULLY RESOLVE

MIDiA Research has a useful term for the deeper risk here: "**create to consume**."¹³ When generating a personalised song is as easy as requesting one, music shifts from a thing you listen to into a thing you *make* for a moment and discard. A remix economy that flatters the superfan may, at scale, erode the very catalogue value it is monetising – by training a generation to treat songs as raw material rather than finished works. The royalty share answers *compensation*. It does not answer *cannibalisation*.

DISNEY & OPENAI – THE CAUTIONARY TALE

CONSENT

CREDIT

~~EXECUTED~~

This is the deal everyone cited as the template – and it is worth getting exactly right, because the popular version is wrong in a way that matters.

On 11 December 2025, in one of Bob Iger's final major moves, Disney and OpenAI announced a landmark three-year licensing agreement: Sora users would be able to generate short, prompted social videos drawing on more than 200 animated, masked and creature characters from Disney, Marvel, Pixar and Star Wars; ChatGPT Images would get comparable access for stills; a curated selection would stream on Disney+.¹⁴ The governance was unusually careful. The licence explicitly *excluded* real actors' voices and likenesses – protecting publicity rights and avoiding a fight with SAG-AFTRA. OpenAI was *barred* from training its foundation models on the licensed IP, limiting the deal to output, not ingestion. A *joint steering committee* was to oversee character usage and safety. And Disney attached a reported \$1 billion equity investment, plus warrants – positioning the studio not as a vendor but as a part-owner of the infrastructure.¹⁴

And then none of it happened.

The framework was immaculate. The platform underneath it evaporated in ninety days.

On 24 March 2026, OpenAI told staff it was shutting Sora down – a staged wind-down, with the consumer app and website ending in late April and the developer API set to close in September.¹⁵ The reasons were brutally economic: consumer video at current GPU prices does not pencil – peak Sora revenue of a few hundred thousand dollars a month against operating costs in the billions – and OpenAI chose to reallocate scarce compute toward higher-margin coding and enterprise products amid intensifying competition.¹⁶ Disney, by multiple accounts, learned of the shutdown with as little as thirty minutes' notice and exited the partnership.¹⁷ Crucially: **no formal agreement was ever signed, and no money changed hands.** The billion-dollar template was a billion-dollar press release.¹⁶¹⁸

It would be easy to read this as a refutation of the whole thesis. It is the opposite. The collapse cleanly separates two things the hype conflated: the *licensing framework* and the *platform implementation*. The platform was fragile – subject to one company's compute economics and strategic whims. The framework Disney's lawyers built – IP-not-training, talent-excluded, jointly governed, equity-aligned – survived the platform's death and is now the reference architecture other studios negotiate against. Disney itself signalled it would keep engaging with AI platforms on those terms.¹⁸ The durable asset was the *contract structure*, not the vendor.

THE GOVERNANCE LESSON EVERYONE TOOK FROM IT

The thirty-minutes'-notice detail became a case study in strategic-investment risk: a \$1bn pledge with, apparently, no board seat or information rights strong enough to give Disney warning that the product it was licensing into was about to be killed.¹⁷ The practical takeaway for every rights holder that follows: align on *equity and governance rights*, not just licence terms – or build the platform yourself. Which is exactly what Hasbro did.

THE INDEPENDENTS – COMMONS, DAOS, ESTATES, AND THE RENT-SEEKING ANTI-PATTERN

Away from the corporate megadeals, individual artists have been quietly running the most radical experiments – and they bracket the design space at both ends.

At the open extreme sits **Grimes**. Through Elf.tech, launched in 2023, she turned her own voice into a shared resource: upload your vocal, get back a synthesised "GrimesAI" performance, release it commercially, and split master royalties roughly fifty-fifty with her.¹⁹ Her team explicitly analogised it to fan-fiction and fan-art cultures – a vocal identity treated as an open-source brand that earns passively while strangers extend it. It is, in effect, commons-based peer production with a royalty hook: the resource is opened, and value is captured at the point of commercial distribution rather than at the point of creation.

Holly Herndon's Holly+ takes the same raw idea – a public digital twin of a voice – and wraps it in collective governance, vesting decisions about commercial use and the distribution of proceeds in a DAO rather than in the artist alone.¹⁹ Herndon has paired this with consent-layer tooling (the "Have I Been Trained?" project) aimed at giving *all* creators visibility into whether their work sits inside training sets.²⁰ Where Grimes optimises for openness, Herndon optimises for *legitimacy* – community consent as a feature, not a footnote.

At the heritage end, estates have learned to license the dead. ElevenLabs, with CMG Worldwide, secured rights to recreate the voices of figures such as Judy Garland, James Dean, Burt Reynolds and Laurence Olivier – but confined them to a single text-to-speech Reader app, walled off from the general voice-cloning database, so the estates retain control and reputational protection.²¹ The same marketplace has since drawn in living and legacy names alike, from Michael Caine to the Stan Lee estate.⁸ The principle is containment: a licence is only as valuable as the boundary it draws around the asset.

And then the anti-pattern. In 2023 Meta paid celebrities – Snoop Dogg, Kendall Jenner, MrBeast and others – reportedly up to several million dollars each to clone their likenesses into branded chatbots.²² On the three Cs it is instructive precisely because it nails two and abandons the spirit of the whole thing. Consent: yes, lavishly paid. Compensation: yes, up front and flat. But there is *no participatory layer at all* – the personas are closed, static, fully platform-controlled, offering the user and the wider creator community no agency whatsoever. It is celebrity-likeness *rental*, not a creative environment. The contrast with Grimes is total: one artist opened her voice to fifteen thousand strangers' songs; the platform rented a frozen mask.

| SUNO & THE CASUAL CREATOR – THE DEMAND FLOOR

Finally, the model that explains the demand the others are racing to capture. Suno turns a text prompt into a finished song. Professionals use it to prototype; its real growth engine is the *casual creator* – non-musicians making a birthday song for a partner, a personalised rap "by" a child's favourite cartoon character.¹³²³ Amazon wired exactly this into Alexa+: speak a request, receive a custom song on the spot.²³

This is where "create to consume" stops being a risk and becomes the entire point. The output isn't competing with the charts; it's competing with a greeting card. And it surfaces the deeper shift the whole essay turns on: when high-fidelity audio becomes effortless, the audio stops being the scarce thing. Value migrates outward – to the cover art, the narrative, the world-building, the human identity wrapped around the sound.²⁴ Abundance at the centre raises the premium on everything at the edges that a model can't fake: taste, trust, story, a name people care about.

MODEL	PRINCIPALS	ECONOMIC STRUCTURE	GOVERNANCE MECHANISM	THE THREE CS
Behavioral Licensing	Hasbro & ElevenLabs	B2B programmatic licence; talent-participation pay-out	CharacterOS – runtime personality, canon & safety enforcement	All three; consent shallow (pay ≠ veto)
Embedded remixing	Universal & Spotify	Paid Premium add-on; new royalty stream to artists	Opt-in catalogue; "Verified by Spotify" badge	All three; cannibalisation risk unpriced
Enterprise co-creation	Disney & OpenAI	\$1bn equity + warrants; 3-yr term (<i>never executed</i>)	Joint steering committee; no-training clause; talent excluded	Framework survived; platform died
Open-source voice	Grimes / Elf.tech	~50% master-royalty split with creators	Programmatic attribution via metadata	Radical consent; light enforcement
Likeness rental	Meta & celebrities	High flat fee (reportedly up to \$5m / 2 yrs)	Closed, platform-controlled personas	Consent + comp; zero participation

04 – Second-Order Effects

Where power, value and labour are moving

1 • POWER: FROM VENDORS TO OWNERS TO RAIL-BUILDERS

Through the streaming era, distribution platforms captured most of the value creators generated; the talent supplied content and the platform set the terms. The generative era inverts the dependency. Now the *platforms* are the supplicants – they need authorised, recognisable, litigation-proof IP to differentiate their models and stay out of court.¹⁴ That hunger is leverage, and rights holders are spending it in three escalating ways.

The mildest is the better licence – UMG's royalty share. The stronger is the *equity stake*: Disney's billion-dollar position would have made it a part-owner of the infrastructure rather than a mere supplier. But the Disney collapse exposed the limit of that move – a stake without governance rights is a stake in someone else's decision. The strongest response, and the one Hasbro chose, is **vertical integration**: don't rent your IP to someone else's fragile platform, build the studio and own the operating system yourself. CharacterOS is not just a guardrail. It is Hasbro declining to be a vendor.

2 • VALUE: THE BIFURCATION AND THE PREMIUM ON THE REAL

As frictionless generation floods every feed with low-cost synthetic "slop," the scarce, appreciating asset becomes *authenticated human creation*. The digital landscape is bifurcating into two zones. On one side, **authorised sandboxes** – verified, licensed, monetised environments where platforms use provenance signals (a

"Verified by Spotify" badge, content-origin labels, a CharacterOS stamp) to steer attention and money toward sanctioned work. On the other, the **open web** – a vast, fragmenting expanse of unlicensed synthetic output facing demonetisation, filtering and legal exposure.

In that world the media company's role mutates from publisher to *IP wholesaler*: it licenses brands to a decentralised creator base and relies on cryptographic verification and provenance rails to track authenticity and royalty flows across platforms it doesn't own. Value accrues to whoever controls the boundary between the two zones – the verification layer – which is precisely why the governance technologies, not the generative ones, are the strategic prize.

3 • LABOUR: THE COSTS DIDN'T VANISH, THEY CHANGED SHAPE

Recall the relocated-transaction-cost argument from the start. Its human consequence is that the work doesn't disappear – it moves. The session musician's hours don't simply evaporate; demand shifts toward voice performers who supply the *authorised* source recordings, toward the people who curate canon and write guardrails, toward provenance and rights-management roles, toward the world-builders and brand stewards who do the thing models can't. This is not a consolation; some of those new roles are fewer and differently distributed than the ones they replace, and "talent participation" is a far weaker thing than employment. But it is the actual shape of the disruption, and it is more interesting – and more contestable – than "the robots took the jobs."

4 • LAW: THE UNBUNDLING OF THE SELF

All of this is dragging the law behind it at speed. Behavioral licensing and synthetic-voice replication are accelerating efforts – by SAG-AFTRA, by state legislatures, by federal bills like the proposed NO FAKES framework – to establish statutory rights over digital likeness and voice for the living and the dead alike. The deep trend is an **unbundling of identity**: voice, physical likeness, performance style and written-character dialogue are increasingly segmented and licensed as *separate* assets under bespoke, automated contracts. Disney licensed its characters while ring-fencing its actors' voices. Hasbro licenses behaviour while paying for the underlying performance. The self is being disaggregated into a portfolio of individually tradable rights – which is liberating and alarming in roughly equal measure, and which the statute books have not remotely caught up with.

05 – Conclusion

The brand as environment

Step back from the deals and the through-line is a single conceptual move. For a century, intellectual property was understood as an *asset*: a discrete, ownable thing whose value you protected by controlling access to it. The scarce resource was the work, and the business was distribution.

What 2026 reveals is a redefinition of IP as an *environment*: a bounded space, governed by rules, inside which value is created continuously by people who are not you. The work is no longer the product; the *conditions of*

participation are the product. Hasbro doesn't sell you Optimus Prime. It sells developers a governed space in which Optimus Prime can be summoned, on-brand and on-licence, a million times over. The asset is the rulebook.

This is why the substitution panic missed the story so badly. It was measuring the wrong scarcity. The machine can generate the character, the voice, the song – that capability is becoming free. What stays scarce, and therefore valuable, is everything the machine can't supply on its own: the canon worth preserving, the audience that cares, the trust that says *this one is real*, and the governance that lets a brand open its gates to strangers without losing itself in the process.

The Disney–OpenAI deal collapsed because it bet on a platform. Hasbro's bet, and Universal's, is subtler and probably more durable: that in an age of infinite generation, the enduring power belongs not to whoever can make the content, but to whoever owns the environment in which it's allowed to count. The brands that grasp this will stop guarding the vault. They'll start building the world – and charging admission.

In an age where anyone can generate anything, the last scarce resource is permission.

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Editorial note on rigour: the most consequential correction to the underlying brief concerns Disney–OpenAI. The deal was *announced* (11 Dec 2025) but *never executed* – no signed agreement, no funds transferred – and collapsed within ~90 days when Sora was shut down. Several widely-circulated summaries treat it as a completed, operative template; it was not. Figures for the creator economy, the Grimes royalty split and the Meta payouts are press- or analyst-reported and are flagged accordingly above.

► **DREAM MACHINE** – HOW AI IS RESHAPING THE CREATIVE INDUSTRIES.
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